

STATE OF NEW YORK

54--A

Cal. No. 499

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. FERNANDEZ, ADDABBO, BORRELLO, CANZONERI-FITZPATRICK, GOUNARDES, HELMING, HOYLMAN-SIGAL, JACKSON, KRUEGER, MARTINS, MURRAY, OBERACKER, PALUMBO, RAMOS, RHOADS, ROLISON, C. RYAN, SEPULVEDA, SERRANO, WEBB, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the penal law, in relation to prohibiting the use of the intoxication of a victim as a defense to a criminal charge for sex crimes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (d) of subdivision 2 of section 130.05 of the
2 penal law, as amended by chapter 23 of the laws of 2024, is amended and
3 a new paragraph (e) is added to read as follows:

4 (d) Where the offense charged is sexual misconduct as defined in
5 subdivisions one, two and three of section 130.20, rape in the third
6 degree as defined in subdivision seven, eight or nine of section 130.25,
7 or a crime formerly defined in subdivision three of section 130.40 of
8 this article, in addition to forcible compulsion, circumstances under
9 which, at the time of the act of vaginal sexual contact, oral sexual
10 contact or anal sexual contact, the victim clearly expressed that [~~he or~~
11 ~~she~~] such victim did not consent to engage in such act, and a reasonable
12 person in the actor's situation would have understood such person's
13 words and acts as an expression of lack of consent to such act under all
14 the circumstances[~~-~~];

15 (e) Where the offense charged is sexual misconduct as defined in
16 subdivisions one, two and three of section 130.20, rape in the third

EXPLANATION--Matter in italics (underscoring) is new; matter in brackets
[~~-~~] is old law to be omitted.

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degree as defined in subdivisions seven, eight or nine of section 130.25, or a crime formerly defined in subdivision three of section 130.40 of this article, in addition to forcible compulsion, circumstances under which, at the time of the act of vaginal sexual contact, oral sexual contact or anal sexual contact, the victim was clearly under the influence of any drug, intoxicant, or other substance to such a degree which rendered the victim incapable of controlling such victim's conduct and incapable of clearly expressing lack of consent and such condition was known or reasonably should have been known to a person in the actor's situation.

§ 2. This act shall take effect immediately.